

Non-Solvency II Firms - Conduct Standards

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1

Application and Definitions

1.1

This Part applies:

1. (1) to a [small non-directive insurer](#); and
2. (2) in relation to a [small non-directive insurer](#), to any [person](#) who is:
 1. (a) a [Conduct Rules non-executive director](#);
 2. (b) approved under section 59 of [FSMA](#) by either:
 1. (i) the [PRA](#); or
 2. (ii) the [FCA](#), in relation to a [relevant senior management function](#);
 3. (c) a [certification employee](#);
 4. (d) an [employee](#) who should have been approved under section 59 of [FSMA](#) by either:
 1. (i) the [PRA](#); or
 2. (ii) the [FCA](#), in relation to a [relevant senior management function](#); or

3. (e) an [employee](#) who is performing a function that would have been a [controlled function](#) but for [Non-Solvency II Firms – Senior Management Functions 2.3](#).

- 10/12/2018
- [Past version of 1.1 before 10/12/2018](#)

1.2

In this Part the following definition shall apply:

[employee](#)

has the meaning given in [Non-solvency II Firms – Certification 1.2](#).

- 10/12/2018

1A

Scope of Conduct Standards

1A.1

If you are a natural person who is approved under section 59 of [FSMA](#) by either:

1. (1) the [PRA](#); or
2. (2) the [FCA](#), in relation to a [relevant senior management function](#),

you must comply at all times with all of the [conduct standards](#).

- 03/07/2017

1A.2

If you are a [Conduct Rules non-executive director](#), you must comply at all times with the [conduct standards](#) specified in [2.1](#) to [2.3](#), [2.7](#) and [2.8](#).

- 03/07/2017

1A.3

If you are an [employee](#) of a type specified in [1.1\(2\)\(c\)](#), [1.1\(2\)\(d\)](#) or [1.1\(2\)\(e\)](#) you must comply at all times with the [conduct standards](#) specified in [2.1](#) to [2.3](#).

- 10/12/2018

1A.4

A [firm](#) must require:

1. (1) a natural [person](#) of a type specified in [1.1\(2\)\(b\)](#) to observe all of the [conduct standards](#); and
2. (2) an [employee](#) of a type specified in [1.1\(2\)\(c\)](#), [1.1\(2\)\(d\)](#) or [1.1\(2\)\(e\)](#) to observe the [conduct standards](#) specified in [2.1](#) to [2.3](#).

- 10/12/2018

2

Conduct Standards

2.1

Conduct Standard 1: You must act with integrity.

- 07/03/2016

2.2

Conduct Standard 2: You must act with due skill, care and diligence.

- 07/03/2016

2.3

Conduct Standard 3: You must be open and co-operative with the [FCA](#), the [PRA](#) and other regulators.

- 07/03/2016

2.4

Conduct Standard 4: You must take reasonable steps to ensure that the business of the [firm](#) for which you are responsible is controlled effectively.

- 07/03/2016

2.5

Conduct Standard 5: You must take reasonable steps to ensure that the business of the [firm](#) for which you are responsible complies with the relevant requirements and standards of the [regulatory system](#).

- 07/03/2016

2.6

Conduct Standard 6: You must take reasonable steps to ensure that any delegation of your responsibilities is to an appropriate [person](#) and that you oversee the discharge of the delegated responsibility effectively.

- 07/03/2016

2.7

Conduct Standard 7: You must disclose appropriately any information of which the [FCA](#) or the [PRA](#) would reasonably expect to have notice.

- 07/03/2016

2.8

Conduct Standard 8: When exercising your responsibilities, you must pay due regard to the interests of current and potential future [policyholders](#) in ensuring the provision by the [firm](#) of an appropriate degree of protection for their insured benefits.

- 07/03/2016